

“Civil Code section 1717 provides that ‘[r]easonable attorney’s fees shall be fixed by the court.’...[T]his requirement reflects the legislative purpose ‘to establish uniform treatment of fee recoveries in actions on contracts containing attorney fee provisions.’ [Citation.] Consistent with that purpose, the trial court has broad authority to determine the amount of a reasonable fee. [Citations.]” (*PLCM Group, Inc. v. Drexler* (2000) 22 Cal.4th 1084, 1094-1095.) The party moving for an award of attorneys’ fees bears the burden of showing “that the fees incurred were ‘allowable,’ were ‘reasonably necessary to the conduct of the litigation,’ and were ‘reasonable in amount.’” (*Id.* at 816.)

The Court finds, from the Declaration of Edward Rubacha, that the tasks undertaken by counsel for Plaintiff in this action were reasonably necessary to the conduct of the litigation. (See *id.* at ¶¶ 3, 5-22, and Exh. A.) The Court further finds that the amounts of time spent on each task were reasonable. Finally, the Court finds that the amount charged by counsel is consistent with fees typically charged in the community for similar work.

Based on the foregoing, the Motion is GRANTED.

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Luis Sepulveda v. David Abreu Vineyard Management, Inc.

24CV000839

STATUS OF PAGA SETTLEMENT COMPLIANCE

APPEARANCE REQUIRED. The February 11, 2026 Order provides: “Upon completion of the Settlement, the Settlement Administrator will provide written certification of the completion to the Court and counsel for the Parties by August 3, 2026 which shall be filed with the Court on or before July 13, 2026.” (¶ 16.) There is nothing new in the Court file since February 11, 2026. Appearances are required to update the Court on the status of compliance with the settlement terms.

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Ron Peters v. Garrett Lloyd Brumley et al

25CV000149

CROSS-DEFENDANT ACME CHASSIS FACTORY’S DEMURRER TO THE FIRST AMENDED CROSS-COMPLAINT OF GARRETT LLOYD BRUMLEY, CRYSTAL A. BRUMLEY, dba THREE FIVE CUSTOMS; CONSOLIDATED PERFORMANCE INC. dba THREE FIVE CUSTOMS

TENTATIVE RULING: The demurrer is SUSTAINED. Cross-Complainants are granted 10 calendar days leave, from entry of the instant ruling, to amend the operative cross-complaint. (See Rules of Court, rule 3.1320(g).)

A. PRELIMINARY MATTERS

Cross-Defendant Acme Chassis Factory LLC, a Texas Limited Liability Company (Acme), erroneously sued and served as Acme Chassis Factory, demurs, pursuant to Code of

Civil Procedure, section 430.41, subdivision (a), to the Fifth and Sixth Causes of Action – the only causes of action asserted against Acme – in the First Amended Cross-Complaint (FACC) filed on February 3, 2026. Acme demurs on grounds that the FACC fails to allege facts sufficient to state a claim against Acme.

The instant action arises out of an alleged agreement, by and between Plaintiff Ron Peters, and Cross-Complainants for the restoration of a 1975 Ford Bronco belonging to Plaintiff. Plaintiff asserts claims of breach of contract and promissory estoppel against Cross-Complainants. Through the FACC, Cross-Complainants assert four causes of action against Plaintiff, and the two claims subject to the instant demurrer against Acme and co-defendant RHAB, Inc. (RHAB).

B. LEGAL BACKGROUND

A complaint must contain “facts constituting the cause of action.” (Code Civ. Proc., § 425.10, subd. (a)(1).) “The party against whom a complaint or cross-complaint has been filed may object, by demurrer . . . to the pleading on . . . grounds [that] . . . [t]he pleading does not state facts sufficient to constitute a cause of action . . .” (Code Civ. Proc., § 430.10, subd. (e).) A demurrer on grounds that a plaintiff has failed to state a claim is treated as “admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law.” (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) Such a demurrer “‘does not admit . . . facts impossible in law, or allegations contrary to facts of which a court may take judicial knowledge.’ [Citation.]” (*Kenneth Mebane Ranches v. Superior Court* (1992) 10 Cal.App.4th 276, 291-292.) The Court must “construe the allegations of a complaint liberally in favor of the pleader.” (*Skopp v. Weaver* (1976) 16 Cal.3d 432, 438.) Court must also accept as true facts that may be inferred from those expressly alleged. (*Cundiff v. GTE Cal., Inc.* (2002) 101 Cal.App.4th 1395, 1405.) The Court may also consider as grounds for a demurrer any matter that is judicially noticeable under Evidence Code sections 451 or 452. (Code Civ. Proc., § 430.30, subd. (a).) Because, “[a] demurrer tests only the legal sufficiency of the pleading. . . the question of plaintiff’s ability to prove the[] allegations, or the possible difficulty in making such proof does not concern the reviewing court.” (*Comm. on Children’s Television, Inc. v. Gen. Foods Corp.* (1983) 35 Cal.3d 197, 213-14.)

C. LEGAL ANALYSIS

The Fifth Cause of Action is titled “Implied Indemnity.” Acme asserts that “Cross-Complaint fails to state facts sufficient to ascertain if it’s a theory of Implied Equitable Indemnity sounding in negligence or Implied Contract Indemnity, and the Cross-Complaint generally fails to state facts sufficient to constitute a cause of action for either theory of Implied Indemnity . . .” (Support Memo at 2:2-5.)

Through the Opposition, Cross-Complainants assert that their theory is one of equitable indemnity arising out of contract. (See, *e.g.*, *id.* at 5:14-15 [“The 5th Cause of Action States a Claim for Implied Contractual Indemnity, Which Requires Neither a Tort nor Joint Liability”].) Cross-Complainants

“The right to implied contractual indemnity is predicated upon the indemnitor’s breach of contract, ‘the rationale ... being that a contract under which the indemnitor undertook to do work or perform services necessarily implied an obligation to do the work involved in a proper manner and to discharge foreseeable damages resulting from improper performance absent any participation by the indemnitee in the wrongful act precluding recovery.’ [Citation.]” (*West v. Super. Ct.* (1994) 27 Cal.App.4th 1625, 1633.)

The Court is unable, however, to locate, in the FACC, any allegation of a contractual relationship between Cross-Complainants, or any of them, and Acme. Cross-Complainants contend, here, that they “allege[] the relationship between Cross-Complainants and Acme as manufacturer of the chassis for the Bronco (FACC ¶¶ 6, 12, 13) . . .” There is, however, *no relationship* between Cross-Complainants and Acme alleged at any of the cited paragraphs, let alone a contractual relationship.

Based on the foregoing, the Court finds that Cross-Complainants have failed to allege facts sufficient to state a claim for implied contractual indemnity.

Moreover, the Court finds that, while the FACC purports to state a claim for Declaratory Relief as a “Sixth Cause of Action,” that section of the FACC merely reasserts the allegations relating to Cross-Complainants’ purported implied indemnity cause of action. “A trial court may . . . dismiss a declaratory relief claim at the demurrer stage where it is “‘wholly derivative’” of other failed claims.” (*Siskiyou Hospital, Inc. v. Co. of Siskiyou* (2025) 109 Cal.App.5th 14, 53.)

Generally, it is an abuse of discretion for a court to deny leave to amend where there is any reasonable possibility that a Plaintiff can state a good cause of action. (*Goodman v. Kennedy* (1976) 18 Cal.3d 335, 349.) The Court finds, from the nature of the allegations in the FACC and the arguments made through the Opposition, a reasonable possibility that Cross-Complainants can amend to state a good cause of action.

Based on the foregoing, the demurrer is SUSTAINED WITH LEAVE TO AMEND.

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Regina Dal Poggetto v. Richard P. Solis

25CV002373

DEFENDANT RICHARD PAUL SOLIS’S MOTION TO DISMISS FOR LACK OF SUBJECT MATTER JURISDICTION

TENTATIVE RULING: The matter is CONTINUED to October 15, 2026, at 8:30 a.m. in Dept. B.

“The court lacks jurisdiction to rule on a motion that has not been properly noticed for hearing on the date in question.” (*Diaz v. Prof. Community Management, Inc.* (2017) 16 Cal.App.5th 1190, 1204-05.) The Proof of Service indicates that the moving papers and notice of hearing were served on Plaintiff, by mail, on August 20, 2026. Thus, Defendant failed to provide adequate notice of the hearing date. (See Code Civ. Proc. §§1005, subd. (b) [“all moving